Greenharbour Terminal — Berth 4 Extension Works

Project No. GHT-B4-2026

Conditions of Contract

Between the Employer and the Contractor

Site: Greenharbour, Plot B4

Synthetic fixture — for pilot evaluation only.

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Contract Data

Time for Completion	730 days from the Commencement Date
Delay Damages (LD) rate	0.05% of the Final Contract Price per day
Delay Damages cap	10.0% of the Final Contract Price
Defects Notification Period (DNP)	365 days
Engineer	the Engineer
Performance Security	10.0% of the Accepted Contract Amount
Advance Payment	10.0% of the Accepted Contract Amount
Retention	5.0% (limit 2.5%)
Contract Sum	48,750,000.00

General Conditions

Clause 1 — General Provisions

1.1 Definitions

Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request.

Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed.

1.2 Interpretation

The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties.

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1.3 Communications

Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity.

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1.4 Law and Language

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1.5 Priority of Documents

The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data.

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Clause 2 — The Employer

2.1 Right of Access to the Site

Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. The parties shall perform their respective obligations

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2.2 Permits, Licences and Approvals

The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed.

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2.3 Employer’s Personnel

Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach.

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2.4 Employer’s Financial Arrangements

Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. Any sum that becomes payable under

this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed.

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2.5 Employer’s Claims

Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach.

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Clause 3 — The Engineer

3.1 Engineer’s Duties and Authority

Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach.

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3.2 Delegation by the Engineer

Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed.

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3.3 Instructions of the Engineer

The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties.

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3.4 Replacement of the Engineer

The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment.

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3.5 Determinations

The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor's breach. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment.

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Clause 4 — The Contractor

4.1 Contractor's General Obligations

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4.2 Performance Security

The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed.

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4.3 Contractor’s Representative

Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed.

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4.4 Subcontractors

Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity.

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4.5 Assignment of Benefit of Subcontract

The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. The parties shall perform their respective obligations under

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4.6 Co-operation

The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed.

Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request.

4.7 Setting Out

Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day.

Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request.

The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day.

4.8 Safety Procedures

The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment.

The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor's breach. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment.

Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data.

4.9 Quality Assurance

Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day.

Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor's breach. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data.

Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties.

4.10 Site Data

The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties.

The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed.

Clause 5 — Subcontracting

5.1 Consent to Subcontracting

Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment.

Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment.

The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data.

5.2 Subcontractors

The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties.

The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment.

The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day.

5.3 Nominated Subcontractors

Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data.

The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected

of competent practitioners experienced in works of a similar nature, size and complexity. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data.

5.4 Evidence of Payments

Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request.

Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity.

Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties.

Clause 6 — Staff and Labour

6.1 Engagement of Staff and Labour

Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach.

Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day.

6.2 Rates of Wages and Conditions of Labour

The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed.

The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Where the Contract requires a matter

to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data.

6.3 Persons in the Service of the Employer

Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties.

Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request.

The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed.

6.4 Labour Laws

Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach.

Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed.

The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed.

6.5 Working Hours

Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Where the

Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity.

Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day.

6.6 Facilities for Staff and Labour

The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach.

Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data.

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6.7 Health and Safety

Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity.

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Clause 7 — Plant, Materials and Workmanship

7.1 Manner of Execution

Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach.

Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment.

7.2 Samples

The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed.

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7.3 Inspection

The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity.

Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment.

7.4 Testing

Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed.

Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request.

7.5 Rejection

Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach.

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7.6 Remedial Work

The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment.

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Clause 8 — Commencement, Delays and Suspension

8.1 Commencement of Works

Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Unless otherwise stated, nothing in

this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed.

Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request.

The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request.

8.2 Time for Completion

The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request.

Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed.

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8.3 Programme

The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment.

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Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor's breach. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day.

8.4 Extension of Time for Completion

The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor's breach. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day.

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8.5 Delays Caused by Authorities

Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed.

The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor's breach. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties.

8.6 Rate of Progress

The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor's breach. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity.

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such claim is caused by the Contractor’s breach.

8.7 Delay Damages

Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request.

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8.8 Suspension of Work

Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach.

Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data.

8.9 Consequences of Suspension

Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach.

The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data.

Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed.

8.10 Payment for Plant and Materials in Event of Suspension

Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties.

Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties.

The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data.

Clause 9 — Tests on Completion

9.1 Contractor’s Obligations

Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed.

The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach.

Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day.

9.2 Delayed Tests

Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. The Contractor shall comply with the requirements of

this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed.

Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment.

9.3 Retesting

Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties.

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9.4 Failure to Pass Tests on Completion

Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity.

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Clause 10 — Employer’s Taking Over

10.1 Taking Over of the Works and Sections

Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request.

Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed.

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10.2 Taking Over of Parts of the Works

Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed.

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10.3 Interference with Tests on Completion

Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day.

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Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data

from the date it becomes due until the date of payment. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day.

Clause 11 — Defects Liability

11.1 Completion of Outstanding Work and Remedying Defects

Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties.

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11.2 Cost of Remedying Defects

Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed.

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11.3 Extension of Defects Notification Period

Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity.

The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment.

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11.4 Failure to Remedy Defects

The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request.

Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request.

Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day.

11.5 Removal of Defective Work

Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties.

The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment.

11.6 Further Tests

Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity.

The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed.

The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties.

11.7 Right of Access

The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed.

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Clause 12 — Measurement and Evaluation

12.1 Works to be Measured

Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed.

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12.2 Method of Measurement

Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach.

The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment.

12.3 Evaluation

The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity.

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12.4 Omissions

Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties.

Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request.

Clause 13 — Variations and Adjustments

13.1 Right to Vary

The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed.

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13.2 Value Engineering

Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request.

Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties.

The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data.

13.3 Variation Procedure

The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data.

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13.4 Payment in Applicable Currencies

Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. The parties shall perform their

respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day.

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13.5 Provisional Sums

The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment.

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13.6 Daywork

The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data.

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13.7 Adjustments for Changes in Legislation

The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties.

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Clause 14 — Contract Price and Payment

14.1 The Contract Price

The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties.

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14.2 Advance Payment

The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment.

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The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day.

14.3 Application for Interim Payment Certificates

Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach.

The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed.

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14.4 Schedule of Payments

The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day.

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14.5 Plant and Materials intended for the Works

Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day.

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determination shall be reasoned and copied to both parties. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data.

14.6 Issue of Interim Payment Certificates

Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day.

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14.7 Payment

The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed.

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14.8 Delayed Payment

Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request.

Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach.

The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor's breach. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request.

14.9 Payment of Retention Money

Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties.

The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor's breach. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed.

The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor's breach. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request.

14.10 Statement at Completion

The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor's breach. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data.

The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor's breach. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day.

Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request.

14.11 Application for Final Payment Certificate

The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data.

Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach.

The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment.

14.12 Discharge

The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data.

The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day.

14.13 Issue of Final Payment Certificate

Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach.

Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties.

Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity.

14.14 Cessation of Employer’s Liability

The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data.

The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties.

Clause 15 — Termination by Employer

15.1 Notice to Correct

The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed.

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Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request.

15.2 Termination by Employer

Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity.

Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity.

15.3 Valuation at Date of Termination

Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data.

The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties.

Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity.

15.4 Payment after Termination

The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day.

Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request.

The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. Any sum that

becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment.

Clause 16 — Suspension and Termination by Contractor

16.1 Contractor’s Entitlement to Suspend Work

Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity.

The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach.

Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data.

16.2 Termination by Contractor

Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed.

The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment.

Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity.

16.3 Cessation of Work and Removal of Contractor’s Equipment

Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day.

Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed.

16.4 Payment on Termination

The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach.

Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data.

Clause 17 — Risk and Responsibility

17.1 Indemnities

Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day.

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17.2 Contractor’s Care of the Works

Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Any sum that becomes payable

under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment.

Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data.

17.3 Employer’s Risks

Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data.

The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day.

The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data.

17.4 Consequences of Employer’s Risks

Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties.

The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment.

17.5 Intellectual and Industrial Property Rights

The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity.

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Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data.

Clause 18 — Insurance

18.1 General Requirements for Insurances

The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request.

The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed.

Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach.

18.2 Insurance for Works and Contractor’s Equipment

The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day.

Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request.

The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed.

18.3 Insurance against Injury to Persons and Damage to Property

Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach.

Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties.

18.4 Insurance for Contractor’s Personnel

Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day.

The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed.

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Clause 19 — Force Majeure

19.1 Definition of Force Majeure

Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care

and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed.

Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed.

19.2 Notice of Force Majeure

Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity.

Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity.

19.3 Duty to Minimise Delay

Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request.

Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach.

19.4 Consequences of Force Majeure

The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed.

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waiver of any provision is effective unless it is in writing and signed. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day.

19.5 Optional Termination, Payment and Release

Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day.

Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach.

Clause 20 — Claims, Disputes and Arbitration

20.1 Contractor’s Claims

Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day.

The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day.

Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data.

20.2 Appointment of the Dispute Adjudication Board

Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity.

Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. Any notice,

consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data.

20.3 Failure to Agree Dispute Adjudication Board

The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day.

Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request.

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20.4 Obtaining Dispute Adjudication Board’s Decision

The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. Where the Contract requires a matter to be agreed, determined or certified, the Engineer shall consult each party before proceeding, and each determination shall be reasoned and copied to both parties. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity.

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20.5 Amicable Settlement

Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed.

Time shall be of the essence for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity.

Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. Time shall be of the essence

for the obligations to which this Clause applies; any period expressed in days shall be calculated as calendar days, and any period expiring on a non-working day shall be deemed to expire on the next working day. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity.

20.6 Arbitration

Unless otherwise stated, nothing in this Clause relieves either party of a liability, duty or obligation that the Contract imposes on it, and no waiver of any provision is effective unless it is in writing and signed. Any notice, consent, approval, certificate or determination to which this Clause refers shall be in writing, shall not be unreasonably withheld or delayed, and shall be copied to the parties identified in the Contract Data. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. Any sum that becomes payable under this Clause shall be included in the next Payment Certificate and shall bear interest at the rate stated in the Contract Data from the date it becomes due until the date of payment.

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20.7 Failure to Comply with Dispute Adjudication Board’s Decision

The Contractor shall maintain at the Site such records, registers and contemporary evidence as are necessary to substantiate any matter arising under this Clause, and shall make them available to the Engineer on request. The Contractor shall comply with the requirements of this Clause and with all applicable Laws, and shall keep the Employer indemnified against any claim arising from a failure to do so, to the extent such claim is caused by the Contractor’s breach. The parties shall perform their respective obligations under the Contract in good faith and with the skill, care and diligence expected of competent practitioners experienced in works of a similar nature, size and complexity.

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Schedule 1 — Milestone Schedule

Milestone	Description	Due (days from Commencement)
M1	Site mobilisation and setting out	0
M2	Substructure — piling and foundations complete	180
M3	Superstructure frame complete	400
M4	Mechanical and electrical first fix complete	550
M5	Testing and commissioning complete	650
M6	Taking Over of the Works	730